



Delhi Public School Agra

UNDER THE AEGIS OF THE DELHI PUBLIC SCHOOL SOCIETY



DPS:Ag:P:002/2021

27th June 2020

Dear Parents,

Trust you are safe and sound.

Media including social media is full of conflicting/fake/interpretation/gossips with regard to government and court orders on school fees.

This circular is to share the official orders in order to clear any doubts.

1. UP Government has issued three orders dated 07-04-2020, 21-04-2020 and 27-04-2020. We have shared the above three orders with our circular 28-04-2020 with you.
2. Hon'ble High court at Allahabad has so far passed two final order in writs filed for fee waiver. First writ number is 9895 of 2020 and final order was passed on 22-06-2020. The second writ number is 655 of 2020 and final order was passed on 24-06-2020. We are enclosing both the orders with this circular.
3. DIOS Agra has issued clarification with regard to school fees. The said clarification is enclosed as well.

As mentioned before school is committed ;

- To abide by any UP government/court order with regard to fee.
- School will physically open only after government gives direction and guidelines on the same.
- Any amount paid in past by parents or paid after this circular will be adjusted as per final government/court orders in this regard
- School will continue to impart education online to one and all children till further orders.

All the enclosed documents are being sent for information and necessary action at your end with a request not to believe in gossips/conflicting/fake news.

We would keep you posted with any further orders from Government / Courts in this regard.

Thanking You.

Principal
DPS AGRA

Court No. - 29

Case :- PUBLIC INTEREST LITIGATION (PIL) No. - 655 of 2020

Petitioner :- Ashutosh Kumar Pandey

Respondent :- Union Of India And Another

Counsel for Petitioner :- In Person

Counsel for Respondent :- A.S.G.I.,C.S.C.

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Saumitra Dayal Singh,J.

1. Heard learned counsel for the parties.
2. This is a wholly misconceived petition filed in the shape of public interest litigation to issue a direction to the State Government to issue a Government Order directing all the schools and colleges in the State of Uttar Pradesh not to charge monthly fees from the children which includes tuition fees, fees for facility which school provides to the children in campus, when the schools are open during holiday, due to Covid-19 epidemic.
3. We record at the outset that the submission of the petitioner that the schools are observing holidays during Covid-19 epidemic is absolutely false/wrong. Most of the schools and colleges are taking up on-line classes for the students and teachers are taking either live classes or sending videos to the students. Even students are being given homework and the same is being checked by the teachers.
4. Moreover, the petitioner herein has no locus to raise the issue, that too, in the nature of mandamus commanding the respondents i.e. the State Government to issue a Government Order in this respect.
5. Moreover, in any case the pleadings made in the writ petition are insufficient to invoke the extra-ordinary jurisdiction of the High Court in the nature of public interest litigation.
6. The present writ petition is accordingly, **dismissed**.

Order Date :- 24.6.2020

Shubham